

BEFORE THE FEDERAL MARITIME COMMISSION

INTERNATIONAL LONGSHOREMAN'S
ASSOCIATION,

*

Complainant,

*

v.

*

FMC Docket No.: 22-12

GATEWAY TERMINALS, LLC;
CHARLESTON STEVEDORING COMPANY,
LLC; PORTS AMERICA FLORIDA, INC.;
CERES MARINE TERMINALS, INC.;
AND SSA ATLANTIC, LLC,

*

*

*

Respondents.

*

MOTION FOR LEAVE TO FILE BRIEF AS AMICUS CURIAE

Pursuant to Rule 73 of the Federal Maritime Commission's Rules of Practice and Procedure, 46 C.F.R. § 502.73, Georgia Ports Authority ("GPA") hereby moves for leave to file a brief as amicus curiae. Pursuant to Rule 73(a), GPA's brief is being conditionally filed together with this motion.

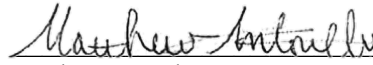
On August 18, 2022, ALJ Wirth entered an Order to File Briefing (the "Order"). The Order directed Complainant and Respondents to submit briefing regarding whether the relief sought in this action potentially implicates state sovereign immunity of GPA and the South Carolina Ports Authority. As set forth in GPA's brief, GPA has an interest in this question because: 1) it is an arm of the state of Georgia entitled to Eleventh Amendment immunity; and 2) the relief sought in this matter could potentially impact its existing relationship with Respondent Gateway Terminals, LLC. GPA respectfully submits that its brief is desirable in order to provide the Commission with GPA's position regarding its sovereign immunity and the impact such immunity may have on the Commission's consideration of the issues before it.

For the foregoing reasons, GPA respectfully requests that this motion be granted and that its brief as amicus curiae be accepted for filing.

Respectfully submitted,

SAUL EWING ARNSTEIN & LEHR, LLP

Dated: September 22, 2022



Paul M. Heylman
Matthew J. Antonelli
1919 Pennsylvania Avenue, NW
Washington, DC 20006
(202) 342-3422
(202) 337-6065 (Fax)
paul.heyman@saul.com
matt.antonelli@saul.com

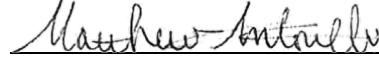
OLIVER MANER LLP

Paul H. Threlkeld
218 West State Street
Savannah, GA 31401-3232
(912) 236-3311
pht@olivermaner.com

COUNSEL TO AMICUS CURIAE GEORGIA
PORTS AUTHORITY

CERTIFICATE OF SERVICE

I hereby certify that the foregoing motion was provided to counsel for Complainant and counsel for Respondents by email on this 22nd day of September, 2022.


Matthew J. Antonelli